

21STCV04325 21STCV04325

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-11

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Defendant Robbins's motion for trial preference is denied. Defendant has presented no evidence that Defendant's health "is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (Code Civ. Proc. § 36(a)(2).) The fact that Defendant is 80 years old is not sufficient. The case relied on by Defendant, *Fox v. Superior Court* (2018) 21 Cal.App.5th 529, does not support Defendant's position. *Fox* merely held that the trial court erred in denying a motion for trial preference where it was undisputed that the 81-year-old plaintiff suffered from stage IV lung cancer and severe coronary disease, among other ailments; was undergoing chemotherapy treatments; was in constant discomfort; had difficulty performing basic life functions; and had a deteriorated mental state that caused her to become confused and forgetful. (*Id.* at 535.) No remotely similar facts exist here.

Moving party to give notice.